

The court grants GM's motion for judgment on the pleadings on the 5th cause of action for fraudulent inducement—concealment.

C.C.P. §338(d) sets a three-year from discovery limitations period to bring a cause of action for fraud.

Plaintiff's first amended complaint alleges that "Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to engine defects, transmission defects, electrical defects, among other defects and non-conformities" [¶11].

As earlier noted, GM's express warranty was for 3 years or 36,000 miles. Thus, for the purchase date of February 23, 2019, that period ended as of February 23, 2022.

Plaintiff's initial complaint was filed on March 21, 2025, more than three years later.

Unlike for the longer six-year limitations period, no part of the three-year limitations period from this admitted discovery involved the almost six month time period back in 2020, which Emergency Rule 9 covers (or if the claim was discovered within a year or two after purchase, the three-year limitations period including COVID tolling would have expired long before Plaintiff filed his initial complaint).

GM is therefore entitled to judgment on the pleadings on the 5th cause of action for fraudulent inducement—concealment, without leave to amend.

With GM having earlier filed an answer to the 1st amended complaint, the pleadings are now set.

MARQUIEL YOUNG v. SHAILA HOLDINGS LLC et al.
Case No. CU25-07357

SHAILA and JUNAID's Motion to Strike Punitive Damages

TENTATIVE RULING

Defendants SHAILA HOLDINGS LLC and NADER JUNAID ("Moving Defendants") move to strike the allegations and prayer within Plaintiff MARQUIEL YOUNG's first amended complaint ("1AC") concerning punitive damages. Summarized, Plaintiff alleges that she rented a residence from Defendants (including Defendant VIRGINIA HILLS LLC) that was not habitable due to cockroaches, mold, a dirty air system, cracking paint, and more. Plaintiff alleges that Defendants retaliated against her in violation of Civil Code section 1942.5 by moving to evict her because she complained about the uninhabitable premises.

Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading. A motion to strike must be filed within the time provided to respond to a pleading. (Code Civ. Proc., § 435, subd. (b)(1).) A court has discretion to grant any motion to strike made outside that time frame, though. (Code Civ. Proc., § 436.) Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is “proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” This means that a plaintiff’s pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “Malice” means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; “oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights; and “fraud” means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code, § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiff alleges at page 4, lines 4 to 16, of the 1AC that Defendants’ agent harassed and intimidated her by filming her at her apartment despite being asked to leave and attempting to enter her children’s bedroom without permission. She also alleges that Defendants’ agent taunted her when she said she would call the police, saying “no one was going to help.” Most significantly, Plaintiff alleges that Defendants retaliated against her for complaining about habitability by evicting her. The first amended complaint contains valid factual allegations demonstrating malicious and/or oppressive conduct potentially supporting imposition of punitive damages.

Moving Defendants’ motion to strike the punitive damages allegations and prayer is denied.

BEASLEY, et al. v. SELENE FINANCE LP, et al.
Case No. CU26-03170

Motion by Attorney John R. Setlich to Be Relieved as Attorney of Record

TENTATIVE RULING